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26-CIV-05203

GAIL WILKERSON VS. EXTRA SPACE STORAGE INC., ET AL.

GAIL WILKERSON

PRO SE

EXTRA SPACE STORAGE INC., A DELAWARE CORPORATION

MOTION FOR PRELIMINARY INJUNCTION

TENTATIVE RULING:

Pro se plaintiff Gail Wilkerson's motion for preliminary injunction is DENIED WITHOUT PREJUDICE.

Initially, the Court notes there is no proof of service upon Defendant Extra Space Storage Inc. of the instant motion. However, Defendant filed an opposition which waives the defect. (*Reedy v. Bussell* (2007) 148 Cal.App.4th 1272, 1288.)

Background

Plaintiff allegedly has been a customer of defendant Extra Space Storage Inc. at their East Palo Alto facility for over 15 years where she stored personal property in Unit A4. (Compl. ¶ 4.) The underlying action arose after defendant scheduled a lien sale of the contents of Unit A4 for July 7, 2026. at 10:00 a.m., based on a claimed lien amount of \$1,479.15. (Compl. ¶ 9.) Plaintiff filed the instant action seeking to enjoin defendant from their action.

Defendant opposes, contending that the motion fails for several reasons, including (1) Plaintiff's motion does not satisfy California Code of Civil Procedure section 527 because it is not based on a verified complaint or affidavits and because notice was not provided to Defendant; (2) Plaintiff failed to meet the burden required for injunctive relief; (3) the scope of the requested relief far exceeds preservation of the status quo; and (4) Plaintiff has agreed to amend her pleading.

Legal Standard

Code of Civil Procedure section 527, subdivision (a) provides in part that: "An injunction may be granted at any time before judgment upon a verified complaint, or upon affidavits if the complaint in the one case, or the affidavits in the other, show satisfactorily that sufficient grounds exist therefor." The standard for the issuance of a preliminary injunction is as follows:

"As a general matter, the question whether a preliminary injunction should be granted involves two interrelated factors: (1) the likelihood that the plaintiff will prevail on the merits, and (2) the relative balance of harms that is likely to result from the granting or denial of interim injunctive relief." (*White v. Davis* (2003) 30 Cal.4th 528,554 [133 Cal.Rptr.2d 648, 68 P.3d 74] (*White*)); see *Butt v. State of*

California (1992) 4 Cal.4th 668, 677-678 [15 Cal.Rptr.2e 480, 842 P.2d 1240].) Typically, the trial court's evaluation of the relative balance of harms compares the interim harm the plaintiff is likely to sustain if the injunction is denied to the harm the defendant is likely to suffer if the preliminary injunction is issued. (*White, supra*, at p. 554.) The potential merit and interim harm as described as interrelated factors because the greater the plaintiff's showing on one, the less must be shown to the other to obtain an injunction. (*Butt v. State of California, supra*, at p. 678.) The goal of this test is to minimize the harm that an erroneous interim decision would cause. (*White, supra*, at p. 554; *People v. Uber Technologies, Inc.* (2020) 56 Cal.App.5th 266, 284 [270 Cal.Rptr.3d 290].)

(*Tulare Lake Canal Co. v. Stratford Public Utility Dist.* (2023) 92 Cal.App.5th 380, 396-97.)

“Plaintiff carries the burden of proof and persuasion on these issues.” (*Drakes Bay Oyster Co. v. California Coastal Com.* (2016) 4 Cal.App.5th 1165, 1172 [citing *O'Connell v. Superior Court* (2006) 141 Cal.App.4th 1452, 1481]. The Court recognizes that plaintiff needs only show that she is “likely to prevail” however plaintiff must still support her argument(s) with admissible evidence to sustain her burden. (Code Civ. Proc. § 527 subd. (a); see also *Finnie v. Town of Tiburon* (1988) 199 Cal.App.3d 1, 14–15 [“...while the injunction may rest upon either a verified complaint or affidavits, the law is settled that the allegations of either must be factual; conclusory averments in either are insufficient to support issuance of an injunction.”].) An **unverified** complaint is not evidence. (Contra, *Riviello v. Journeymen Barbers, etc., Union*, (1948) 88 Cal.App.2d 499, 501 [verified evidence may support an injunction, emphasis added].)

Discussion

Here, Plaintiff's complaint, while signed, is not verified. Verification, the process described below, is one of the required manners to present a factual basis for the instant motion under Code of Civil Procedure section 527, subdivision (a).

In all cases of a verification of a pleading, the affidavit of the party shall state that the same is true of his own knowledge, except as to the matters which are therein stated on his or her information or belief, and as to those matters that he or she believes it to be true; and where a pleading is verified, it shall be by the affidavit of a party, unless the parties are absent from the county where the attorney has his or her office, or from some cause unable to verify it, or the facts are within the knowledge of his or her attorney or other person verifying the same. ... A person verifying a pleading need not swear to the truth or his or her belief in the truth of the matters stated therein but may, instead, assert the truth or his or her belief in the truth of those matters “under penalty of perjury.”

(Code Civ. Proc., § 446, subd. (a).)

Additionally, the instant motion represents that it is based on a “Declaration of Gail Wilkerson filed concurrently herewith” but no declaration or exhibits are appended to the motion. Accordingly, because “a preliminary injunction must rest on *either* a verified pleading *or* facts

shown by affidavit.’ (Code Civ. Proc., § 527, subd. (c)(1).)” plaintiff’s request is DENIED. (*Integrated Dynamic Solutions, Inc. v. VitaVet Labs, Inc.* (2016) 6 Cal.App.5th 1178, 1185.)

The Court is aware plaintiff is proceeding pro se however our legal standards require that the Court apply the rules of practice and procedure equally to self-represented litigants and represented litigants alike. (See *Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 984-985 [a party’s election to act as his own attorney does not entitle him to lenience as to the rules of practice and procedure].) To that end, a practice pointer in Weil & Brown’s well-known deskbook, *California Practice Guide: Civil Procedure Before Trial*, cautions “[b]ecause pleadings are supposed to contain ultimate rather than evidentiary facts (*see* ¶ 6:123), a pleading [alone] may not establish the facts necessary to support an injunction. Therefore, it is better practice to rely on declarations when seeking injunctive relief.” (Weil & Brown (*Cal. Practice Guide: Civil Procedure Before Trial* § 9:501.1 (TRG (June 2026 update)).)

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Defendant shall prepare a written order consistent with this ruling for the court’s signature, pursuant to California Rules of Court, rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.

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